

Scottish Courts and Tribunals Service



Process for Submitting Confidential Documents

Using Objective Connect

Within the Court of Session General Department

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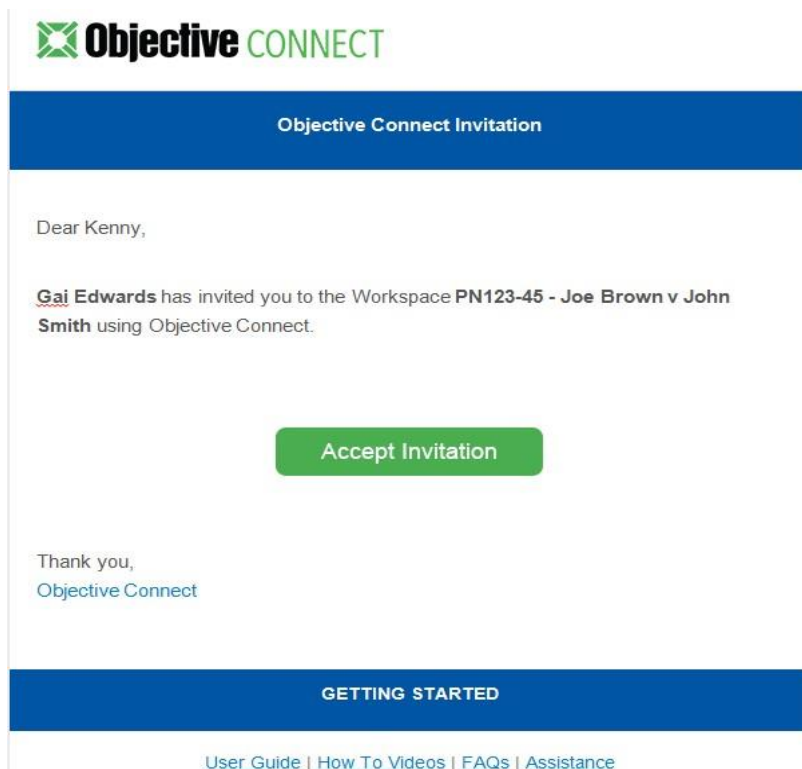
1. Introduction

This is a guide for Havers on how to use Objective Connect in the Court of Session when confidentiality of documents is claimed under Rule of Court 35.8. A Haver is a person believed to be in possession of a document or property from whom a party to proceedings wishes to obtain it for the purposes of the proceedings.

Objective Connect is a collaboration tool used by SCTS to enable external court users to submit digital documents and, where appropriate, share them with other parties. Havers can access Objective Connect via a web browser so no additional software is required.

2. Joining a Workspace

- Only documents from Havers deemed confidential will be submitted in digital format on Objective Connect.
- The Havers shall intimate by email to the General Department at gcs@scotcourts.gov.uk that they wish to use Objective Connect to submit confidential documents.
- Havers must provide the full name and reference number of the case, the full name and address of the Havers and an e-mail address for us to invite them to upload the confidential documents and a copy of the Interlocutor allowing the Specification of Documents.
- In order to ensure confidential documents cannot be viewed by court staff Havers must complete a preview page form, as shown in Annex A below, for uploading into Objective Connect. General Department staff will provide Havers with a copy of this form by email.
- General Department staff will then create a workspace in Objective Connect to allow the Havers to submit the confidential documents in a digital format.
- The Havers will receive an e-mail from a General Department staff member inviting them to join the Workspace, as per the example below:



3. Navigation

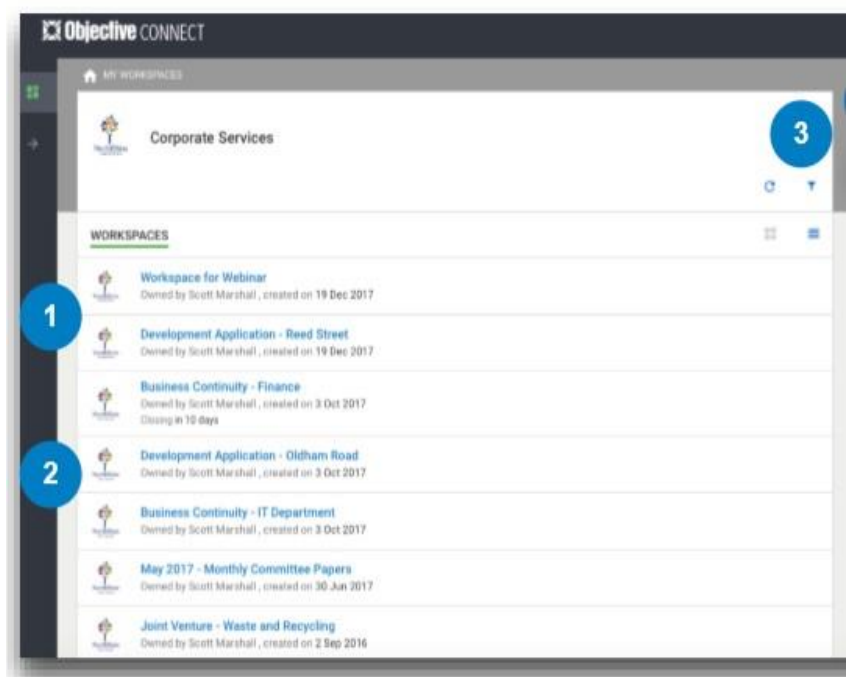
On accepting the invitation, if you do not already have an Objective Connect account you must set a password. If you already have an account, you can log in directly.

Getting Started

Once you have logged into Objective Connect, you will see the list of secure Workspaces, you have access to.

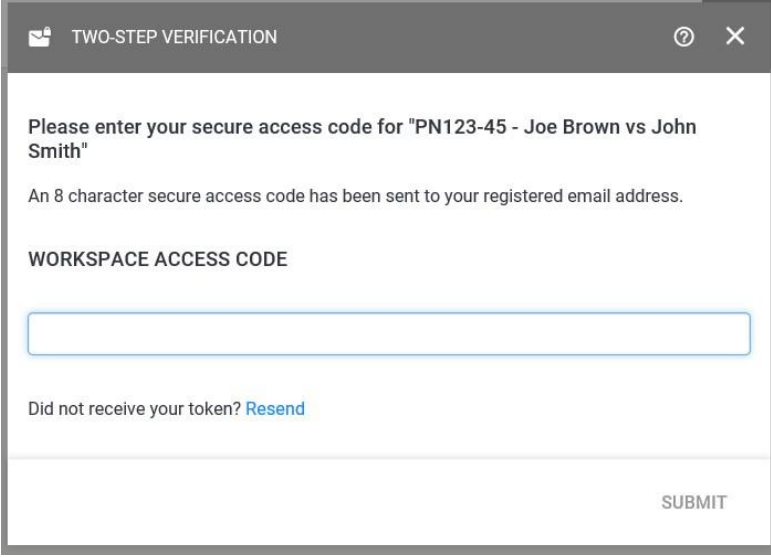
On this initial page you can:

1. **View all of the secure Workspaces**, that you have created or been invited to.
2. Click on the Workspace name to **view the contents** of that Workspace.
3. Click the filter icon to **filter and search** the Workspaces that you have been invited to.



3.1 Two-step Verification

Two-step verification is enabled on all Objective Connect Workspaces. When you select a Workspace, the following dialogue box will appear and a secure access code is emailed to you. Submit the code to continue.



A dialog box titled "TWO-STEP VERIFICATION" with a close button. The text inside says: "Please enter your secure access code for 'PN123-45 - Joe Brown vs John Smith'". Below this, it says: "An 8 character secure access code has been sent to your registered email address." There is a label "WORKSPACE ACCESS CODE" above a text input field. Below the input field, it says: "Did not receive your token? [Resend](#)". At the bottom right is a "SUBMIT" button.

4. Adding Documents

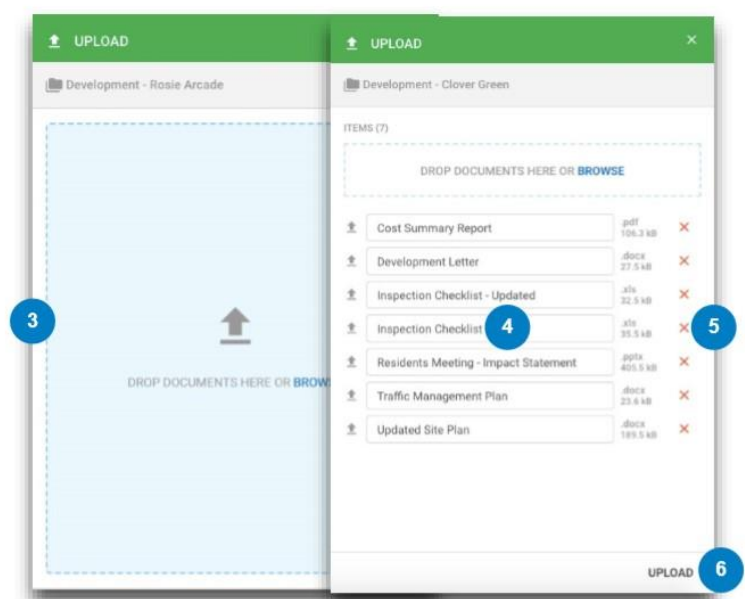
When the participants have been added to Objective Connect, the Havers will be given permission only to preview (by default), add documents and post comments.

Adding Documents

To add documents to a workspace:

1. Click the green **+ icon**. 
2. Select the **'Add Document'** document icon. 
3. Either **drag and drop** your document into the space provided or use the document picker to add a document.
4. The files you have selected will be listed in the blade. Files can be **renamed** before uploading to Connect
5. Use the 'X' icon to **remove** any documents that you do not wish to upload.
6. Click **upload**.

You will now see the upload progress of each document in the blade. For large files that take longer to upload, you can leave the blade open and navigate away to other locations in Connect.



- The preview page form at Annex A should be uploaded by the Havers as the front page of your confidential documents. This will appear in the Workspace as the preview page and will be the only page visible to General Department staff.
- All documents should be password protected by Havers before being uploaded to the Workspace. Passwords must not be provided to General Department staff.
- Documents should be uploaded with the preview page form, completed certificate that is attached to the order served upon the Havers, inventory of the documents and the Interlocutor allowing the Specification of Documents.
- Once the documents have been uploaded to Objective Connect by the Havers court staff will intimate to all parties the documents have been submitted.
- If a motion enrolled by parties is granted to open the confidential documents under Rule of Court 35.8 (2) agents will be invited by court staff to download the documents from Objective Connect and contact the Havers directly to request the password to access the documents.

5. Workspace Closure

When the confidential documents are downloaded by the relevant agents the General Department will be notified by auto-email that they have been downloaded and the workspace will then be closed, permanently deleting the documents.

If parties do not enrol a motion in terms of Rule of Court 35.8 (2) within 21 days of the intimation of receipt of the documents, General Department staff will close the Workspace, permanently deleting the documents, and notify the Havers of this in the terms set out in Annex B (attached).

6. Documents That Cannot be Lodged Electronically

If confidential documents do not exist in digital format and cannot be lodged electronically then the following procedure should be followed:

Documents delivered in person

Havers should e-mail gcs@scotcourts.gov.uk to arrange an appointment to deliver the documents to **Parliament House, 2 Parliament Square, Edinburgh, EH1 1RQ** by reception at Door 11. In-person delivery should be done by appointment only.

Once the documents are received General Department staff will e-mail out the intimation form to all parties in the action.

A motion in terms of Rule of Court 35.8 (2) must be enrolled by the requesting agents to open the confidential documents.

If parties do not enrol a motion in terms of Rule of Court 35.8 (2), within 21 days of the intimation of receipt of the documents to open the hard copy confidential documents, the General Department will return the confidential documents by post and notify the Havers of this in terms similar to those set out in Annex B.

Documents delivered by post

Confidential envelopes sent in by post should be addressed to the **Deputy Principal Clerk of Session, General Department, Court of Session, 2 Parliament Square, Edinburgh, EH1 1RQ** and marked as 'Confidential'.

When the documents are received the General Department will e-mail out the intimation form to all parties in the action.

A motion in terms of Rule of Court 35.8 (2) must be enrolled by the requesting agents to open the confidential documents.

If parties do not enrol a motion in terms of Rule of Court 35.8 (2), within 21 days of the intimation of receipt of the documents to open the hard copy confidential documents, the General Department will return the confidential documents by post and notify the Havers of this in terms similar to those set out in Annex B.



Haver's name & address

Court of Session
Parliament House
Parliament Square
Edinburgh
EH1 1RQ

Our Ref: O/F/C Section

Date:

Dear Sirs,

You have advised us by e-mail that, as havers having been served a Specification of Documents, in terms of Rule of Court 35.8 you wish to submit electronic documents as 'Confidential' using Objective Connect.

You must complete the information below and insert this page **as the first page** of your confidential documents. When you are invited by Objective Connect to join a workspace to add documents you should upload your entire document including this page.

These documents require to be password protected before you upload them to Objective Connect. The password should be retained by you as the havers **and not sent to court staff**. Agents will be advised to contact you directly to obtain the password if their motion to uplift the confidential documents is granted by the Court.

Case Name -

Case Reference Number –

Date of Order served upon you –

Requesting Agents who served the order –

Yours faithfully,

ANNEX B

Supreme Courts



Haver's name & address

**Court of Session
Parliament House
Parliament Square
Edinburgh
EH1 1RQ**

Our Ref: O/F/C Section

Date:

Dear Sirs,

Further to the serving of the Specification of Documents in terms of Rule of Court 35.8 you as havers submitted confidential documents on Objective Connect on [date] in the action of [case name & number].

As the requesting agents have not enrolled a motion to ask the Court to open the confidential documents in the specified time frame, in terms of Rule of Court 35.8 (2) we have now closed the workspace on Objective Connect and the documents have been permanently deleted from our system.

If the requesting agents enrol a new motion for a Specification of Documents under Rule of Court 35.8 and it is granted, the requesting agents will require to intimate any new orders upon you as havers.

Yours faithfully,